



CHAPTER iii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Aberavon Birkenhead Cheltenham Neath Newton in Mackerfield Ulverston and Widnes. A.D. 1915.
[19th May 1915.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Viet.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1915. Short title.

A.D. 1915.

S C H E D U L E.

BOROUGH OF ABERAVON.

*Aberavon
Order.*

*Provisional Order for altering the Aberavon Local Board
Act 1866 and the Local Government Board's Provisional
Orders Confirmation (No. 14) Act 1896.*

To the Mayor Aldermen and Burgesses of the Borough of
Aberavon ;—

And to all others whom it may concern.

WHEREAS the Borough of Aberavon (herein-after referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses acting by the Council (herein-after referred to as “the
Corporation”) are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875 ;

29 & 30 Vict.
c. ccxl.

And whereas the unrepealed provisions of the Aberavon Local
Board Act 1866 (herein-after referred to as “the Local Act”) as altered
by the Aberavon Orders 1876 to 1896 and the Aberavon Order 1903
are in force in the Borough ;

And whereas in pursuance of the Local Act the gas undertaking
and gasworks of the Aberavon Gas and Coke Consumers Company
Limited became vested in the Corporation and by Section 35 of the
Local Act the Aberavon Order 1876 and the Aberavon Order 1880
which Orders were duly confirmed by Parliament the Corporation were
empowered to borrow for the purposes of their gas undertaking sums
amounting in the whole to the sum of fifteen thousand pounds ;

59 & 60 Vict.
c. cviii.

And whereas by Article I. of the Aberavon Order 1896 (herein-
after referred to as “the Order of 1896”) which was confirmed by the
Local Government Board's Provisional Orders Confirmation (No. 14)
Act 1896 (herein-after referred to as “the Confirming Act of 1896”)
as altered by Article II. of the Aberavon Order 1903 which Order
was also confirmed by Parliament the Corporation were empowered
with the sanction of the Local Government Board to borrow upon the
securities specified in the first-mentioned Article such further sums not
exceeding in the whole the sum of thirty-five thousand pounds as
might from time to time be necessary for the purposes of their gas
undertaking ;

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. iii.]
Provisional Orders Confirmation (No. 1) Act, 1915.

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid and the Confirming Act of 1896 so far as it relates to the Order of 1896 in the manner hereinafter set forth:

A.D. 1915.
*Aberavon
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1896 so far as it relates to the Order of 1896 shall be further altered so that the following provisions shall have effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The Local Act as altered as aforesaid and the Confirming Act of 1896 so far as it relates to the Order of 1896 shall have effect as if the words “fifty-eight thousand five hundred pounds” were inserted in Article I. of the Order of 1896 instead of the words “twenty thousand pounds.”

Increase of
borrowing
powers for
purposes of
gas under-
taking.

Art. II. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on raising
money dur-
ing war.

Art. III. This Order may be cited as the Aberavon Order 1915 and the Aberavon Orders 1876 to 1896 the Aberavon Order 1903 and this Order may be cited together as the Aberavon Orders 1876 to 1915.

Short titles.

Given under the Seal of Office of the Local Government Board
this Seventh day of January One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

BOROUGH OF BIRKENHEAD.

*Provisional Order for altering the Birkenhead
Corporation Act 1902.*

*Birkenhead
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Birkenhead;—

And to all others whom it may concern.

WHEREAS the Borough of Birkenhead (hereinafter referred to as
“the Borough”) is an Urban Sanitary District of which the Mayor

[Ch. iii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1915.

A.D. 1915. Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and there are in force in the Borough the unrepealed provisions of the Birkenhead Corporation Act 1902 (herein-after referred to as "the Local Act") as altered by a certain Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order;

Birkenhead Order.

2 Edw. 7.
c. lxii.

And whereas by Section 24 of the Local Act the Corporation are empowered subject to and in accordance with the provisions of that section to raise by means of bills any money which they are authorised to raise by the creation and issue of stock or of mortgages but by paragraph (13) of the said section it is provided that except as therein mentioned the aggregate amount payable on bills current at any one time shall not exceed the sum of one hundred and fifty thousand pounds;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Increase of
aggregate
amount
payable on
current bills.

Art. I. Section 24 of the Local Act shall have effect as if the words "five hundred thousand pounds" were inserted in paragraph (13) of the section instead of the words "one hundred and fifty thousand pounds."

Consent of
Treasury to
issue of bills
during war.

Art. II. Notwithstanding anything in this Order the Corporation shall not under the powers enlarged by this Order raise any money by means of bills during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Short title.

Art. III. This Order may be cited as the Birkenhead Order 1915.

Given under the Seal of Office of the Local Government Board
this Twenty-first day of January One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

BOROUGH OF CHELTENHAM.

A.D. 1915.

Provisional Order for altering the Cheltenham Improvement Act 1889 the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892 and the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1898.

Cheltenham
Order.

To the Mayor Aldermen and Burgesses of the Borough of Cheltenham;—

And to all others whom it may concern.

WHEREAS the Borough of Cheltenham (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed provisions of the Cheltenham Improvement Act 1889 (herein-after referred to as "the Local Act") as altered by the Cheltenham Order 1892 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892 and the Cheltenham Order (No. 2) 1898 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1898 (each of which Orders and Confirming Acts is herein-after referred to as the Order or the Confirming Act as the case may be of the year wherein it was made or passed and all of which Orders and Confirming Acts are herein-after referred to respectively as "the Orders" and "the Confirming Acts") and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

52 & 53 Vict.
c. clxxxiv.

55 & 56 Vict.
c. ccxxiii.

61 & 62 Vict.
c. ccxii.

And whereas by Section 66 of the Local Act the Corporation were empowered to purchase by agreement the lands known as the Pittville Estate together with the pump-room and other buildings thereon and the other rights rentcharges and appurtenances mentioned in that section;

And whereas by Section 67 of the Local Act the Corporation were empowered after such purchase to alter and improve the said estate pump-room and buildings and to erect maintain alter and improve additional buildings for the use and enjoyment of the public on the said estate and to use or permit the use of the same as or in connexion with a pump-room and for the preparation and sale of the mineral

[Ch. iii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1915.

A.D. 1915. waters on the estate and for the other purposes mentioned in that
Cheltenham section and to make charges for or in connexion with the use of the
Order. said buildings and otherwise as they should see fit;

And whereas by the Orders the Corporation were authorised to purchase by agreement the lands hereditaments and premises described in the schedules to the Orders and Section 67 of the Local Act was altered so as to enable the Corporation to sink wells fix and lay pipes pumps and other apparatus and erect and maintain buildings baths apparatus and appliances and do all other things necessary for the use manufacture and sale of the mineral waters and the said section as so altered was made applicable as well to the lands hereditaments and premises purchased under the Orders as to those to which the same was originally applicable;

And whereas by Section 118 of the Local Act as altered by the Orders the Corporation were empowered with the sanction of the Local Government Board to borrow money on the security of the borough fund and the borough rate of the Borough for the purchase and improvement of the Pittville Estate and for the purposes of the Orders but by Article V. of the Order of 1892 as altered by Article II. of the Order of 1898 it was provided that for the purposes of the Orders the Corporation should not be empowered to borrow sums amounting in the whole to more than fifty thousand pounds;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act and the Confirming Acts in the manner hereinafter set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Acts so far as they respectively relate to the Orders shall be altered so that the following provisions shall take effect that is to say:—

Authorising Art. I. The Corporation may by agreement with any person
Corporation grant assign or lease sole and exclusive rights to any such person in
to grant ex- regard to the use manufacture and sale of the water from any of the
clusive rights mineral water wells belonging to the Corporation or in which they
in regard to may have an interest upon such terms and conditions and for such
mineral period as may be specified in such agreement.
waters.

Additional Art. II. The Confirming Act of 1892 so far as it relates to the
borrowing Order of 1892 shall have effect as if there were omitted from Article V.
powers for

A.D. 1915.

of the Order of 1892 the words "Provided that for the purposes of
 " this Order the Corporation shall not be empowered to borrow sums
 " amounting in the whole to more than fifty thousand pounds".

*Cheltenham
 Order.*
 purposes of
 Orders.

Art. III. Notwithstanding anything in this Order the Corporation
 shall not under the powers of this Order borrow any money during
 the continuance of the present war and twelve months thereafter unless
 the consent of the Treasury has been previously obtained.

Restriction
 on raising
 money dur-
 ing war.

Art. IV. This Order may be cited as the Cheltenham Order 1915
 and the Orders and this Order may be cited together as the Cheltenham
 Orders 1892 to 1915.

Short titles.

Given under the Seal of Office of the Local Government Board
 this Second day of February One thousand nine hundred
 and fifteen.

(L.S.)

HERBERT SAMUEL President.
 H. C. MONRO Secretary.

BOROUGH OF NEATH.

*Provisional Order for altering the Neath Corporation Water
 Act 1894 and the Local Government Board's Provisional
 Orders Confirmation (No. 6) Act 1908.*

Neath Order.

To the Mayor Aldermen and Burgesses of the Borough of Neath;—
 And to all others whom it may concern.

WHEREAS the Borough of Neath (herein-after referred to as "the
 Borough") is an Urban District of which the Mayor Aldermen and
 Burgesses acting by the Council (herein-after referred to as "the
 Corporation") are the Urban District Council and the local authority
 within the meaning of the Public Health Act 1875 and there are in
 force in the Borough the unrepealed provisions of the Neath Cor-
 poration Water Act 1894 (herein-after referred to as "the Local Act")
 as altered by the Neath Order 1908 (herein-after referred to as "the
 Order of 1908") which was confirmed by the Local Government
 Board's Provisional Orders Confirmation (No. 6) Act 1908 (herein-after
 referred to as "the Confirming Act of 1908");

57 & 58 Vict.
 c. lxxxiii.

8 Edw. 7.
 c. cxlvi.

And whereas by virtue of the Local Act the water undertaking of
 the Neath Water Company was transferred to and vested in the
 Corporation and the Corporation were thereupon empowered to supply
 water within the limits described in the Local Act;

And whereas by sub-section (1) of Section 35 of the Local Act
 the Corporation were empowered to borrow the sums of money therein
 specified and by Article III. of the Order of 1908 it is provided

[Ch. iii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1915.

A.D. 1915. that in addition to the moneys authorised to be borrowed by the
Neath Order. Local Act as altered by that Order the Corporation may with the
sanction of the Local Government Board and subject to the provisions
of the said Order and of sub-section (4) of Section 35 of the Local
Act borrow upon the security of the revenue of their water under-
taking and upon the security of the borough fund and borough rate
of the Borough or upon either of those securities such sums not
exceeding the sum of twenty thousand pounds as may be required
for the purposes of the said undertaking;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to alter or
amend the Local Act as altered as aforesaid and the Confirming Act
of 1908 so far as it relates to the Order of 1908 in the manner
herein-after set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Sections 297 and 303 of the Public Health
Act 1875 and by any other Statutes in that behalf do hereby order
that from and after the date of the Act of Parliament confirming this
Order the Local Act as altered as aforesaid and the Confirming Act of
1908 so far as it relates to the Order of 1908 shall be altered so that
the following provisions shall take effect that is to say:—

Increase of Art. I. The Local Act as altered as aforesaid and the Confirming
borrowing Act of 1908 so far as it relates to the Order of 1908 shall have
powers for effect as if the words “not exceeding the sum of twenty thousand
purposes of pounds” were omitted from Article III. of that Order.
water under- taking.

Restriction Art. II. Notwithstanding anything in this Order the Corporation
on raising shall not under the powers of this Order borrow any money during
money dur- the continuance of the present war and twelve months thereafter unless
ing war. the consent of the Treasury has been previously obtained.

Short titles. Art. III. This Order may be cited as the Neath Corporation Water
Order 1915 and the Order of 1908 and this Order may be cited
together as the Neath Corporation Water Orders 1908 and 1915.

Given under the Seal of Office of the Local Government Board
this Twenty-fifth day of January One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

URBAN DISTRICT OF NEWTON IN MACKERFIELD. A.D. 1915.

Provisional Order for altering the Newton District Improvement Act 1855 and the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1900. *Newton in Mackerfield Order.*

To the Urban District Council of Newton in Mackerfield ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Newton in Mackerfield (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Newton in Mackerfield (herein-after referred to as "the District") ;

And whereas there are in force in the District the unrepealed provisions of the Newton District Improvement Act 1855 (herein-after referred to as "the Local Act") as altered by the Newton in Mackerfield Order 1900 (herein-after referred to as "the Order of 1900") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1900 (herein-after referred to as "the Confirming Act of 1900") by the Newton in Mackerfield Order 1903 (herein-after referred to as "the Order of 1903") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1903 and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

18 & 19 Vict.
c. c.

63 & 64 Vict.
c. liii.

3 Edw. 7.
c. lxxviii.

And whereas by virtue of the Local Act the Council are empowered to manufacture and supply gas within the District and to purchase lands by agreement for the purposes of erecting and constructing altering improving or extending gasworks but the Council are by the Local Act prohibited from erecting any works for the manufacture of gas elsewhere than on the lands specified in the Schedule (A) to the Local Act ;

And whereas in pursuance of the Local Act the Council have acquired by agreement the land described in the Schedule to this Order ;

And whereas by Article I. of the Order of 1900 as altered by the Order of 1903 the Council were empowered with the sanction of the Local Government Board to borrow for the purposes of their gas undertaking and on the securities therein mentioned the sum of twenty thousand pounds in addition to the sum of twenty-four thousand pounds referred to in that Article ;

[Ch. iii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1915.

A.D. 1915.

*Newton in
Mackerfield
Order.*

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid and the Confirming Act of 1900 so far as it relates to the Order of 1900 in the manner hereinafter set forth :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1900 so far as it relates to the Order of 1900 shall be altered so that the following provisions shall take effect that is to say :—

Use of
additional
land for gas
purposes.

Art. I. Notwithstanding anything in the Local Act the Council may hold and use the land described in the Schedule to this Order for all or any of the purposes of their gas undertaking including the manufacture and storage of gas and residual products as if such land was included in and formed part of the lands described in the Schedule (A) to the Local Act and the provisions of the Local Act shall apply and have effect accordingly.

Additional
borrowing
powers for
gas under-
taking.

Art. II. The following shall be substituted for Article I. of the Order of 1900 as altered by the Order of 1903 :—

“ Art. I. The District Council may with the sanction of the
“ Local Government Board and subject to the provisions of this
“ Order borrow for the purposes of their gas undertaking and
“ on the security of the revenue arising from that undertaking
“ and of the gas rates and the general improvement rate under
“ the Local Act or upon any of such securities such sum or
“ sums as may from time to time be necessary for the purposes
“ of their gas undertaking.”

Restriction
on raising
money dur-
ing war.

Art. III. Notwithstanding anything in this Order the Council shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Period for
repayment
of moneys
borrowed.

Art. IV. Article IV. of the Order of 1900 shall have effect as if sixty years from the date of borrowing were substituted therein for thirty years from the date of borrowing as the period within which moneys borrowed under that Order as altered by the Order of 1903 and this Order shall be repaid.

Short title

Art. V. This Order may be cited as the Newton in Mackerfield Order 1915.

The SCHEDULE above referred to.

A.D. 1915.

*Newton in
Mackerfield
Order.*

All that piece of land situate at Earlestown in the District and containing 9,600 square yards or thereabouts and bounded on the east and north-east partly by Wargrave Old Road and partly by land belonging or reputed to belong to the devisees of Robert Houghton deceased on the west and north-west by the London and North Western Railway (Earlestown to Warrington Branch) and on the south by land belonging or reputed to belong to Lord Newton.

Given under the Seal of Office of the Local Government Board
this Sixth day of January One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

URBAN DISTRICT OF ULVERSTON.

*Provisional Order for altering the Ulverston Local Board
Act 1874 and the Local Government Board's Provisional
Orders Confirmation (No. 1) Act 1895.*

*Ulverston
Order.*

To the Urban District Council of Ulverston ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Ulverston (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Ulverston (herein-after referred to as "the District") and the unrepealed provisions of the Ulverston Local Board Act 1874 (herein-after referred to as "the Local Act") as altered by the Ulverston Orders 1885 to 1913 are in force in the District;

37 & 38 Vict.
c. cliv.

And whereas by Section 110 of the Local Act as altered by the Ulverston Order 1885 which Order was duly confirmed by Parliament the predecessors of the Council were empowered to borrow for the purposes of the Local Act with respect to gas (including the provision of working capital) sums amounting in the whole to the sum of sixteen thousand pounds;

A.D. 1915.

*Ulverston
Order.*58 & 59 Vict.
c. xl.

And whereas by subdivision (a) of Article I. of the Ulverston Order 1895 (herein-after referred to as "the Order of 1895") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895 (herein-after referred to as "the Confirming Act of 1895") as altered by the Ulverston Order 1905 which Order was also confirmed by Parliament the Council were authorised with the sanction of the Local Government Board to borrow on the securities therein mentioned such further sums not exceeding in the whole the sum of twelve thousand pounds as the Council might from time to time think requisite for the purposes of their gas undertaking;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid and the Confirming Act of 1895 so far as it relates to the Order of 1895 in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1895 so far as it relates to the Order of 1895 shall be altered so that the following provisions shall take effect that is to say:—

Increase of
borrowing
powers for
purposes of
gas under-
taking.

Art. I. The Local Act as altered as aforesaid and the Confirming Act of 1895 so far as it relates to the Order of 1895 shall have effect as if the words "twenty-two thousand pounds" were inserted in subdivision (a) of Article I. of the Order of 1895 instead of the words "five thousand pounds."

Restriction
on raising
money dur-
ing war.

Art. II. Notwithstanding anything in this Order the Council shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Short titles.

Art. III. This Order may be cited as the Ulverston Order 1915 and the Ulverston Orders 1885 to 1913 and this Order may be cited together as the Ulverston Orders 1885 to 1915.

Given under the Seal of Office of the Local Government Board
this Sixth day of January One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

BOROUGH OF WIDNES.

A.D. 1915.

*Provisional Order for altering the Widnes Improvement
Act 1867 and the Widnes Local Board Act 1875.*

Widnes
Order.

To the Mayor Aldermen and Burgesses of the Borough of
Widnes;—

And to all others whom it may concern.

WHEREAS the Borough of Widnes (herein-after referred to as “the
Borough”) is an Urban District of which the Mayor Aldermen and
Burgesses acting by the council (herein-after referred to as “the
Corporation”) are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed
provisions of the Widnes Improvement Act 1867 and the Widnes
Local Board Act 1875 (each of which Acts is herein-after separately
referred to as the Act of the year in which it was passed) as altered
by the Widnes Order 1879 (herein-after referred to as “the Order of
1879”) which was confirmed by the Local Government Board's Pro-
visional Orders Confirmation (Aspull &c.) Act 1879 by certain other
Provisional Orders duly confirmed by Parliament which do not affect
the subject-matter of this Order and by the Widnes Corporation Act
1908 (herein-after referred to as “the Act of 1908”);

30 & 31 Vict.
c. cxxvi.
38 & 39 Vict.
c. lxxxviii.
42 & 43 Vict.
c. cv.
8 Edw. 7.
c. lxxxvi.

And whereas by the Act of 1867 the Act of 1875 and the Order
of 1879 the predecessors of the Corporation were empowered to borrow
moneys for the purposes of their water undertaking;

And whereas by Section 103 of the Act of 1867 provision was
made with regard to the application of the waterworks fund formed
under Section 89 of that Act;

And whereas by the Act of 1908 provision is made as to the
repayment of principal moneys borrowed or to be borrowed by the
Corporation under any statutory borrowing power and not raised by
the issue of Corporation Stock or debenture stock and by Section 104
of the Act of 1908 it is provided that the principal moneys borrowed
or to be borrowed after the thirty-first day of March one thousand
nine hundred and eight under any statutory borrowing power shall be
repaid within the periods by such statutory borrowing power prescribed
the said periods being in that Act referred to as “the prescribed
periods”;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to alter or

[Ch. iii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1915.

A.D. 1915. amend the Act of 1867 and the Act of 1875 as altered as aforesaid in the manner herein-after set forth:

*Witness
Order.*

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1867 and the Act of 1875 as altered as aforesaid shall be further altered so that the following provisions shall have effect that is to say:—

Additional borrowing powers for waterworks purposes.

Art. I.—(1) In addition to the sums already authorised to be borrowed as aforesaid for the purposes of their waterworks undertaking the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order from time to time borrow such sums as may be required for those purposes.

(2) For the repayment of all moneys borrowed in pursuance of this Order and for the payment of interest thereon the waterworks fund and the general district rate of the Borough are hereby primarily made chargeable and the provisions of the Act of 1908 shall apply and have effect accordingly.

(3) The moneys borrowed in pursuance of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Act of 1908.

Alteration of Section 103(A) of Act of 1867 as to application of waterworks fund.

Art. II. Section 103 (A) of the Act of 1867 shall have effect as if for the paragraphs therein commencing "First" and "Secondly" there were substituted the paragraphs following that is to say:—

First—for providing the moneys required to pay the interest on all moneys borrowed or re-borrowed for the purposes of the water undertaking:

Secondly—for providing the requisite instalments or sinking funds or otherwise making provision for repayment of moneys borrowed or re-borrowed for the purposes of the water undertaking.

Inquiries and expenses.

Art. III. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. iii.]
Provisional Orders Confirmation (No. 1) Act, 1915.

so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation. A.D. 1915.

*Widnes
Order.*

Art. IV. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Restriction on raising money during war.

Art. V. This Order may be cited as the Widnes Order 1915 and the Widnes Orders 1879 to 1905 and this Order may be cited together as the Widnes Orders 1879 to 1915. Short titles.

Given under the Seal of Office of the Local Government Board
this Seventh day of January One thousand nine hundred and
fifteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LONDON, W.C.

